

MEMORANDUM TO THE FILE

Subj: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

IDENTIFICATION OF SOURCE:

Vendor Name: Microchip Technology

Vendor City/State: 2355 W. Chandler Avenue
Chandler, AZ 85224

Cage: 60991

Total Dollar Value: [REDACTED]

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).

2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, and the required delivery date/period of performance.

Purchase of 130 internal frequency standard (IFS) battery packs P/N 1420-0514; 100 each United States (US), 30 United Kingdom (UK), these batteries will be installed in the [REDACTED] within the [REDACTED]. This cost will be [REDACTED] each, 130 batteries x [REDACTED] = [REDACTED] Plus shipping of [REDACTED] Grand total = [REDACTED]

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select applicable area below to open specific form)

- ☐ A. ONLY ONE RESPONSIBLE SOURCE
- ☒ B. BRAND NAME
- ☐ C. UNUSUAL AND COMPELLING URGENCY

A. ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

2. EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

3. OTHER REASONS. Other reason not identified above. Provide details on mission impact if requirement is not solicited from only one source.

B. BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer.

This battery is part of the [REDACTED]
[REDACTED] It is installed into the [REDACTED] and are manufactured by Microchip Per drawing number 7135199-204. Microchip is the only approved source of supply for this item and has been in service for over 10 years. This battery is the correct battery for the [REDACTED] No other battery will work with this [REDACTED] Any other battery would require testing, approval and certification by the prime contractor and [REDACTED] prior to use in the navigation system. Approved documentation, drawings, and procedures, would need require revision to incorporate a different battery. [REDACTED] schedule and budget will not support these changes. Cost would easily [REDACTED] and [REDACTED] [REDACTED] or more to complete.

C. UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits, bids, or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance
3. Explanation of why delivery/commencement of services by the date mentioned above is required:
4. If appropriate, include any additional pertinent information.

IV. CERTIFICATION/APPROVALS:

A. Technical / Requirements Certifications: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

[Redacted Signature Area]

Signature

Name (Printed) / Phone #

Date

B. Certification / Approval

Upon the basis of the above statements and information justification, I hereby approve, as the Contracting Officer, the solicitation of the proposed procurement(s) using other than full and open competition.

[Redacted Signature Area]

Contracting Officer Signature

Name (Printed) / Phone #

Date